

1 ENGROSSED HOUSE
2 BILL NO. 3880

By: Cantrell of the House

3 and

4 Mann of the Senate

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8 An Act relating to tourism; amending 74 O.S. 2021,
9 Section 2237, which relates to commissions from
10 tourism magazine and digital prints; authorizing
11 additional employee compensation under certain
12 circumstances; and providing an effective date.

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14 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

15 SECTION 1. AMENDATORY 74 O.S. 2021, Section 2237, is
16 amended to read as follows:

17 Section 2237. A. There is hereby created within the Oklahoma
18 Tourism and Recreation Department, the "Oklahoma Today Magazine"
19 Division. The Division shall be responsible for the publication of
20 the "Oklahoma Today Magazine" a minimum of six times per year.

21 B. "Oklahoma Today Magazine" is hereby authorized to sell
22 advertising. All advertising shall be approved by the appropriate
23 division director prior to acceptance for publication.

1 C. ~~In~~ Subject to the discretion of the Executive Director, in
2 addition to a regular salary, any employee of the "~~Oklahoma Today~~
3 ~~Magazine~~" Oklahoma Tourism and Recreation Department who obtains
4 advertising, sponsorship, bulk subscription, newsstand, or ancillary
5 product sales, for "Oklahoma Today Magazine", ~~at the discretion of~~
6 ~~the Executive Director~~ any print or digital publication of the
7 Department, or in connection with any tourism promotion efforts of
8 the Department, may be awarded additional compensation in the form
9 of a commission on net sales by the employee. The commission shall
10 not exceed twenty-five percent (25%), with the commission percentage
11 to be determined by the Executive Director. In no case shall the
12 additional compensation, when combined with the salary of the
13 employee, exceed ninety-five percent (95%) of the salary of the
14 Executive Director. Commission payments shall be paid monthly,
15 based on collected revenues from sales by the employee.

16 D. The sale of advertising and negotiation of rates for the
17 advertising shall not be subject to The Oklahoma Central Purchasing
18 Act of 1974 or the Administrative Procedures Act.

19 E. "Oklahoma Today Magazine" articles, and photographs produced
20 by or for "Oklahoma Today Magazine", shall be available for public
21 inspection during Department business hours. The Department shall
22 not be required to provide copies or allow copying of the magazine,
23 articles, or photographs other than as the Department provides
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1 copies of "Oklahoma Today Magazine" for newsstand and subscription
2 sales.

3 SECTION 2. This act shall become effective November 1, 2026.

4 Passed the House of Representatives the 11th day of March, 2026.

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6 _____
7 Presiding Officer of the House
8 of Representatives

9 Passed the Senate the ____ day of _____, 2026.

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12 Presiding Officer of the Senate
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